

		AB2819 was created to “strike a balance between the interests of protecting the credit records of innocent tenants and allowing landlords and others sufficient access to court records.” (AB 2819 Assembly Bill - Bill Analysis) California Rules of Court, Rule 2.550(d) allows the Court to seal a person’s record if the expressly finds: “(1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.” Ms. Rutledge fails to establish that her circumstances are materially distinguishable from those commonly attendant to unlawful detainer proceedings. Inherent in an unlawful detainer judgment is a public record of the action, which prospective landlords may consider when evaluating rental applicants. The possibility that an eviction record could adversely affect future housing opportunities is not unique to Ms. Rutledge and, standing alone, does not constitute an overriding interest sufficient to justify sealing under California Rules of Court, rule 2.550(d). Accordingly, Ms. Rutledge has not demonstrated that her case presents the exceptional circumstances required to overcome the public's right of access to court records. The Court DENIES the Motion to Seal. Plaintiff is ordered to provide notice of the Court’s ruling.
11	30-2026-01553191 Mickle & Lucky Estates LLC vs. Lopez	The Court has read and considered the Defendant’s Motion to Vacate/Set Aside Judgment (ROA 32). The Court takes Judicial Notice of the Clerk’s Certificate of Mailing/Electronic Service (ROA 27), 5/26/2026 Minute Order (ROA 28), and Judgment – Unlawful Detainer (ROA 29). Ms. Lopez states in her Motion that she experienced unexpected transportation delays on the day of the hearing, May 26, 2026, and that she arrived at the courthouse as quickly as possible. The record reflects that her matter was not called until 10:56 a.m. on May 26, 2026. However, there is no indication that Ms. Lopez contacted the courtroom or otherwise attempted to notify the Court of her delay. Additionally, Ms. Lopez does not identify the nature of the alleged transportation issues or provide any documentation or other evidence to substantiate her claim. The Court further notes that Ms. Lopez appeared at the courthouse the following day, May 27, 2026, to file her Motion to Vacate. The Court DENIES the Motion to Vacate/Set Aside Default. The Court Clerk is to notify the Orange County Sheriff’s Department to proceed with the lockout forthwith.

		The Plaintiff is ordered to provide notice of the Court's ruling.
12	30-2026-01553559 Yamtoobian vs. Lawrence	The Court has read and considered the Defendant's Motion to Set Aside (ROA 29), Defendant's Declaration (ROA 35), Plaintiff's Opposition (ROA 37), and Plaintiff's Request for Judicial Notice (ROA 39). The Court takes Judicial Notice of the CP10.5 Prejudgment Claim of Right to Possession Form, Request to Waive Court Fees (ROA 13), Request for Entry of Default (ROA 17), Notice of Change of Address or Other Contact Information (ROA 27), Proof of Service of Summon & Complaint – Unnamed Occupants (ROA 26), Proof of Service of Summons (ROA 24), and Order to Service Summons by Posting (ROA 21). The Prejudgment Claim of Right to Possession Form states as follows: "9. I understand that if I make this claim of possession, I will be added as a defendant to the unlawful detainer (eviction) action. 10. (<i>Filing Fee</i>) I understand that I must go to the court and pay a filing fee of \$ _____ or file with the court an "Application for Waiver of Court fees and Cost." ... 12. I understand that I will have <i>five days</i> (excluding court holidays) to file a response to the Summons and Complaint after I file this Prejudgment Claim of Right to Possession form." Angelina Anderson filed a Prejudgment Claim of Right to Possession form with the Court on March 27, 2026, and was added as a defendant to this action. On the same date, Ms. Anderson filed a Request to Waive Court Fees with the Court. On April 8, 2026, Plaintiff's Counsel mailed Ms. Anderson a copy of the Request for Entry of Default (ROA 17). On May 7, 2026, Ms. Anderson filed a Notice of Change of Address or Other Contact Information with the Court. A party appearing in propria persona does not provide a basis for special treatment under the law; "such a party is to be treated like any other party and is entitled to the same but no greater consideration than other litigants and attorneys." (<i>Barton v. New United Motor Manufacturing, Inc.</i> (1996) 43 Cal.App. 4th 1200, 1210.) Additionally, the Court of Appeal held that a litigant in propria persona is subject to the same restrictive procedural rules as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) Ignorance of the law or a party's failure to exercise reasonable diligence generally does not constitute "excusable neglect" within the meaning of California Code of Civil Procedure section 473(b). Here, Defendant asserts that she "did not understand that I was required to respond within a shortened timeframe." However, the Prejudgment Claim of Right to Possession form expressly states in section 12: "I understand that I will have five days (excluding court holidays) to file a response to the Summons and Complaint after I file this Prejudgment Claim of Right to Possession form." Under these circumstances, Defendant's asserted misunderstanding of the response deadline does not establish excusable neglect. The Court DENIES the Defendant's Motion to Set Aside. The Writ of Possession is to issue forthwith. The Plaintiff is ordered to provide notice of the Court's ruling.